TAPIWA ISRAEL MAKWINDI
versus
THE STATE

HIGH COURT OF ZIMBABWE
CHIKOWERO AND KWENDA JJ
HARARE; 12 March 2025 and 25 February 2026

Criminal Appeal

L Madhuku with K Tsvaira, for the appellant
P A Gutu, for the respondent

CHIKOWERO J:

[1] This is an appeal against the whole judgment of the Magistrates Court sitting at Harare in terms of which the appellant was convicted of one count each of theft and fraud as defined in ss 113(1)(a)(b) and 136, respectively, of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code") as well as one count of money laundering as defined in s 8 (1)(a) of the Money Laundering and Proceeds of Crime Act [*Chapter 9:24*] (the Money Laundering Act). The appellant was sentenced, in respect of the theft and fraud, to 10 years imprisonment on each count with a total 3 years imprisonment suspended on each count on the conditions of restitution and good behaviour. This left the appellant with an effective 7 years imprisonment on each such count in the event that restitution were effected in full. Further, the sentence on the count of fraud was ordered to run concurrently with that imposed on the appellant on the count of theft. As for the money laundering count, the appellant was sentenced to 5 years imprisonment the whole of which was suspended for 5 years on the usual conditions of good behaviour. In addition, certain four motor vehicles were forfeited to the state. The appeal is against the conviction and sentence in respect of each of the three counts.

[2] The appeal is opposed.

[3] In respect of count one, the court *a quo* found that between April 2021 and 5 July 2022 the appellant stole US$196 855 (out of which US$30 325 was recovered) from the complainant, namely Powerspeed Electrical Limited.

[4] As for count two, the court *a quo* found it proved that between 2019 and July 2022 the appellant, using the name T Mashoko, misrepresented to the same complainant not only that T Mashoko was a regular customer of the complainant but that the purported customer's account had been credited with certain sums of money well knowing that such deposits were fake. Thus deceived, the complainant released goods worth RTGS $16 239 781-68 to the appellant under the misapprehension that the appellant, through his T Mashoko account, had bought and paid for goods worth that much from the complainant.

[5] This brings us to count three. The lower court found that the appellant, having acquired the cash proceeds of the theft in count one as well as the proceeds of the fraud in count two laundered the same by purchasing four motor vehicles, namely a Toyota Fortuner, a Mercedes Benz, a VW Golf and a Honda Fit as well as various household property as well as constructing a five roomed mansion in rural Zimuto, Masvingo.

[6] Despite Mr Madhuku's efforts we are satisfied that the lower court did not err in convicting the appellant of the crimes of theft, fraud and money laundering.

[7] We think that the lower court correctly found that the appellant committed the theft. His defence was that he transferred the United States Dollar denominated amounts in question from the complainant's CABS account into his friends and Snake Park Houghton Park Service Stations bank accounts with the knowledge and authorisation of the complainant as a way of raising cash from the parallel market. He told the lower court that he had handed over the cash so raised to the complainant.

[8] We have carefully perused the record. We observe that the conviction in count one rested on the credibility of the witnesses produced by the prosecution, such facts as were common cause, the pertinent exhibits and the rejection of the defence evidence.

[9] Now, where an appeal is attacking factual findings, the approach of the appellate court is to bear in mind that there is a presumption that the factual findings made by the lower court are correct. In *ZINWA* v *Mwoyounotsva SC* 465/13 ZIYAMBI JA said at 16:

> "An appellate court will not interfere with factual findings made by a lower court unless those findings were grossly unreasonable in the sense that no reasonable tribunal applying its mind to the same facts would have arrived at the same conclusion, or that the court had taken leave of its senses or, put otherwise, the decision is so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at it: or that the decision was clearly wrong" see also *Hama* v *National Railways of Zimbabwe* 1996(2) ZLR 664(S) at 670 and *Kereke* v *Mwaramwidze and Anor SC* 53/24.

[10] In convicting the appellant of the crime of theft, the court considered the totality of the evidence on record. It gave reasons for accepting the evidence produced by the prosecution. It also gave reasons for rejecting the testimony of the appellant and his defence witness. We think that the reasons are plausible. For instance, Tapiwa Zingwe, the complainant's Chief Finance Officer was corroborated by Misheck Makore (Head of Internet Banking and Customer Services at CABS) that the appellant (an Accounts Clerk) was not a signatory to the complainant's bank account in question. What the appellant did was this. He took advantage of an error by CABS to unlawfully authorise transfer of the complainant's money held at CABS to the bank accounts of his friends and the service station mentioned in this judgment. Those beneficiaries, who were not entitled to receive such funds, then withdrew the money as cash and handed it over to the appellant. We are satisfied that the lower court did not err in making the following findings of fact. First, that the appellant was not authorised to make the transfers. Second, that he was not a signatory to the complainant's bank account in question. Third, that he took advantage of CABS' error in setting up the internet banking profile wherein he was reflected as having powers to authorise payments from the account in question by transferring money to his friends and acquaintances whereafter he received the money once withdrawn as cash. In the course of giving evidence in Chief, the following exchanges occurred between the public prosecutor and Zingwe:

> "Q: I want you to listen carefully on this one 'All the funds were returned to the company and the accused person handed cash to Mr Zingwe who is yourself.' What is your comment on this?
> A: My comment with all due respect is that its an act of perhaps somebody who has been cornered and has nowhere to go. Clerks are not allowed to move company funds if any because funds are collected at different branches which are the sources and also we have got several bank accounts."

[11] Probed further Zingwe said in Chief:

> "I am the head of finance. Financial transactions I would know. They would not have been any such arrangements. For starters if you look at how the money got into the account these were also some transfers and cash deposits by customers. So, if money is deposited in cash where would be the wisdom to transfer it to individuals ans then get it back into the company. One would ask a number of questions as to who brought it back and how? Any of our monies through our branch network is moved by cash in transit. So for sums such as $200000 to be moved by individuals one would want to know who actually brought them into the company and how?
>
> Q: You said your monies are moved by what?
>
> A: By cash in transit. I will withold the name of the company but its cash in transit."

[12] There is nothing grossly unreasonable in the quoted passages, among other pieces of evidence accepted *a quo*. More fundamentally, the factual findings made by the lower court are not in our view outrageous. They do not defy logic. We do not agree with Mr Madhuku that no sensible person who had applied his mind to the question to be decided could have arrived at them. On the record, we are unable to accept the submission that the decision to convict the appellant of the crime of theft was clearly wrong.

[13] We perceive of no basis to interfere with the credibility findings made *a quo.* Nor is there bias evident in the judgment rendered by the lower court. Nothing turns on that court characterising the defence evidence as "lies" and "afterthoughts." The record vindicates the view taken of the defence evidence by the lower court. A few examples should suffice. It was only in the defence case that the appellant asserted for the first time, but without laying an evidential basis therefor, that there existed documents demonstrating that he was appointed by the complainant to authorise payments from the CABS bank account in question. This was found to be an afterthought. By the time this revelation was made by the appellant, the case for the prosecution had been closed. Zingwe and Makore had already testified and been excused. This new piece of evidence was not put to both witnesses to elicit their comments. In fact, the two witnesses had been categoric that the appellant was not on the list of signatories furnished to CABS by the complainant as having the authority to authorise payments from the account in question. The appellant, legally represented throughout the trial, did not produce any documents speaking to his authority to make payments out of the account in question.

[14] It was only in the defence case that the appellant said, again for the first time, that he had handed over the cash to Susan Thomas. This witness was not called as a defence witness. In outlining his defence, the appellant had asserted that he handed over the cash to Zingwe. In the circumstances, the lower court was correct that the belated mention of Thomas as the recipient of the cash was another afterthought. Indeed, the appellant himself admitted under cross examination that it was an afterthought on his part that he had handed over the cash the subject of count one to Thomas.

[15] The complainant could not have caused the arrest of the appellant if the former had authorised him to raise cash on the parallel market. An amount of US$19500 could not have been recovered from him if he had handed over all the cash to Zingwe. As pointed out by the investigating officer, one Mutombo, it would not have made any sense for the appellant to transfer the sum of US$10400 back into the complainant's account, not to talk of him having used his friend's phone to do so, if he had been authorised by the complainant to raise cash on the parallel market. The reverse transfer was made when the appellant had been arrested by the police. That must surely mean that as regards count one, the appellant was on a frolic of his own. That frolic amounted to the crime of theft.

[16] The amount stolen was adequately proved through the exhibits produced. No good purpose is served by dwelling on this aspect. It will be recalled that, as regards count one, the crux of the matter was whether the appellant had stolen the money.

[17] There was overwhelming evidence that the appellant faked deposits in his T Mashoko account to deceive the complainant into allowing the former's proxies to collect various goods, mainly cement, from the complainant. Talent Mutize, who transported cement for the appellant from the complainant's premises, told the lower court that he ferried such cement on about eight occasions. On all occasions, he did so on the instructions of the appellant. He talked to the appellant. The invoices bore the name "T Mashoko." The witness saved the appellant's name in his own handset as "Powerspeed Benz." Josephat Matare, another state witness, transported goods (procured by the appellant through the fraud charged as count two) on about six occasions. Jacob Gwasira, the TV Sales and Home Loss Control Manager, testified that Tafadzwa

Makwindi (the appellant's brother) collected various goods including furniture acquired by the appellant through what we now know to be the fraud charged as count two. Sitting as an appellate court, we take the view that we have no basis to interfere with the lower court's assessment that these witnesses were truthful. Indeed, the investigating officer weighed in with documentary and oral evidence of his recoveries. The goods recovered tallied with those fraudently acquired by the appellant.

[18] The sweeping submission that the lower court erred in finding that the requirements of the crime of fraud were established was not seriously made. That submission cannot detain this court. Further, as was the case with count one, the monetary value of the prejudice *vis-à-vis* count 2 was proved. The oral and documentary evidence is clear in this regard. We cannot interfere with the factual findings made on a consideration thereof.

[19] The conviction of the appellant on the money laundering charge does not amount to improper splitting of charges. The predicate offences were the theft and the fraud. The appellant committed the crime of money laundering as charged the moment he used the proceeds of the theft and the fraud to acquire the four motor vehicles, to construct the mansion at his rural home in Zimuto and to acquire various household property.

[20] Valentine Junior Mangaba is appellant's friend. He testified, and was believed, that the Mercedes Benz, VW Golf, Fortuner and Honda Fit all belonged to the appellant. The first two vehicles were recovered by the police from Mangaba. The appellant purchased and collected the VW Golf in the company of this witness. Appellant paid the import duty for the Fortuner. Although it belonged to the appellant, the Fortuner was initially registered in Mangaba's name. The registration was changed to reflect the appellant's name in February 2022. The appellant bought the Honda Fit in the presence of Mangaba although he registered it in Wendy Mukanda's name. Mukanda is spouse to the appellant.

[21] Witness Ndou cleared the appellant's motor vehicles at Beitbridge Border Post. These are the Merceds Benz, Honda Fit and Fortuner. He received such instructions from the appellant himself.

[22] Mangaba and Ndou were believed. The lower court found no reason to disbelieve the former. He was appellant's close friend when regard is had to the fact that he not only accompanied the appellant on the occasion of the purchases but also the collection of the VW Golf and the Honda Fit. Further, the appellant trusted Mangaba to the extent that he not only availed the VW Golf and the Mercedes Benz to the former for use but also registered the Fortuner in Mangaba's name. The witness did not betray the trust. Ndou interacted with the owner of the motor vehicles, the appellant, in clearing three of those motor vehicles. Ndou was simply performing his duties. He too was correctly believed.

[23] When he was arrested, the appellant sent a text message to his girlfriend, one Pamela, who was based in Zvishavane to urgently dispose of the Fortuner. The police intercepted the message and recovered that vehicle.

[24] In a well reasoned judgment, the lower court found that the appellant laundered the proceeds of the theft and fraud by acquiring the four motor vehicles (some of which he did not register in his name), stocking and running Busy Bee Hardware in Ruwa, acquiring several household goods as well as constructing a mansion in Zimuto. At least one of the invoices for the building material used in constructing that house simply bore, in place of his own name, the appellation "Tsano" of Masvingo. We take judicial notice of the fact that that is informal language to address an in-law. But the police were not thrown off the track. Their investigations led them to the mansion. We have seen the pictures of that house. It sits in a rural area. Mansion indeed it is.

[25] The lower court considered the appellant's means. It was satisfied that the appellant lacked the financial wherewithal to acquire the four vehicles, the several household goods and to build the mansion in Zimuto. His protestations to the contrary were correctly rejected. So too were his assertions that he did not own two out of the four motor vehicles.

[26] Sentencing discretion reposed in the lower court. We consider that the sentence imposed on the appellant is not vitiated by either irregularity or misdirection. Neither is it excessive. Accordingly, we cannot interfere with the lower court's exercise of discretion. See *S* v *Ramusha and Ors* S25/93, *S* v *Nhumwa* S40/88 and *Kereke* v *Maramwidze and Anor* (supra).

[27] The penalty for theft is a fine not exceeding level fourteen or twice the value of the property stolen whichever is the grater or imprisonment for a period not exceeding twenty-five years.

[28] For fraud, the penalty is a fine not exceeding level fourteen or not exceeding twice the value of any property obtained by him or her as a result of the crime, whichever is greater; or imprisonment for a period not exceeding thirty-five years.

[29] Section 8(6) of the Money Laundering Act prescribes, by way of a penalty for contravening s 8(1)(a) and (b) thereof, a fine not exceeding five hundred thousand United States dollars or not exceeding twice the value of the property involved or the gain derived by the offender, whichever is greater; or imprisonment for a period not exceeding twenty-five years; or both such fine and such imprisonment.

[30] To begin with, all three sentences fall way below the maximum provided by statute. In our view, the sentences are not excessive. They do not induce a sense of shock.

[31] The lower court carefully weighed the aggravation against the mitigation. In the exercise of its sentencing discretion, it decided that non custodial sentences were unsuitable for all three counts. It considered that the aggravation outweighed the mitigation. The appellant was a first offender. He was married and blessed with two children. He lost employment as a direct result of commission of the offences. He offered to pay restitution, which was considered as contrition. However, the aggravation included the betrayal of trust, premeditation on his part and greediness.

[32] We have already found that the quantum of the prejudice was proved in respect of the counts of theft and fraud. Resultantly, the lower court did not err in suspending portions of the imprisonment sentences on condition of payment of restitution. Further, it will be remembered that the appellant himself, in mitigation, offered to pay restitution. He cannot turn around on appeal by submitting that the lower court erred in acceding to his impassioned pleas to be allowed to restitute.

[33] The severity of the sentences was ameliorated in this way. The effective 7 years imprisonment sentence in count two was ordered to run concurrently with the like sentence in

count one. With that, we do not think that there is merit in the submission that the sentences imposed on the appellant in respect of counts one and two are so harsh and excessive as to induce a sense of shock.

[34] That part of the sentence in count three ordering the forfeiture of the four motor vehicles is attacked on the sole basis that the lower court erred in finding that the prosecution proved beyond reasonable doubt that those assets belonged to the appellant and had been acquired using proceeds of crime. This cannot be a ground of appeal against the sentence. It is a ground of appeal against the conviction. In challenging his conviction on the same count the appellant raised the same ground. It reads:

> "7. The court *a quo* grossly misdirected itself in convicting the appellant in respect of count number three notwithstanding that the respondent had failed to prove beyond reasonable doubt that the assets were acquired using proceeds of a crime and that the assets belonged to the appellant."

What does this entail? We dismissed the same ground in disposing of the appeal against the conviction of the appellant in respect of the same count. That really is the end of the matter. That means the same ground cannot have another life for purpose of the appeal against the sentence. We proceed on the basis that, for purposes of the appeal against the sentence in respect of count three, we effectively do not have that same ground before us. Put differently, had we allowed the appeal against the conviction in respect of count three, the effect would have been to set aside the sentence imposed on the appellant in relation thereto without further ado.

[35] In all the circumstances, the entire appeal is devoid of merit.

[36] It is ordered that the appeal be and is dismissed in its entirety.

CHIKOWERO J:……

KWENDA J:……..

Tsvaira Law Chambers, appellant's legal practitioners

The National Prosecuting Authority, respondent's legal practitioners